IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY — JUVENILE DEPARTMENT

In the Matter of AL-MIRA AMIRA JAZMINE DAVIS, A Child. **AFFIDAVIT OF MARIE A. PENN** *(Maternal Grandmother)*	Case No. 25JU04261

STATE OF _____
County of _____ ss.

I, MARIE A. PENN, being first duly sworn, depose and say:

1. I am over the age of eighteen and competent to testify. I make this affidavit on personal knowledge.

2. I am the mother of AshLe' Antoinette Penn and the maternal grandmother of the child in this matter, Al-Mira Davis.

3. I understand that records of the Oregon Department of Human Services ("ODHS") attribute two statements to me. Both statements are false. I did not make either of them.

4. **First statement.** An ODHS Fact Findings Report dated August 19, 2025 (at page 22) states that I told a caseworker that I "had been trying to get custody of Ashle's children for years because she is not fit to be a mother but was denied custody by the agency." **I never made that statement.** I have never told any ODHS caseworker or employee that my daughter is not fit to be a mother. I have never sought custody of my daughter's children on the ground that she is unfit, and I was never denied custody of her children by the agency for any such reason.

5. **Second statement.** An ODHS report dated December 30, 2019 states that "Ashle's mother reportedly suspects that Ashle has 'schizophrenia.'" **I never made that statement.** I have never told any ODHS caseworker, employee, or

reporter that my daughter has schizophrenia, is schizophrenic, or suffers from any such mental illness. I am not qualified to diagnose any medical or mental-health condition, and I have never suspected or claimed that my daughter has schizophrenia.

6. I have reviewed the two statements described above, and each is untrue. I did not make them, and they do not reflect anything I have ever said to ODHS or to any person acting on its behalf.

7. I make this affidavit freely, for use as evidence in the above-captioned matter and any related proceeding.

_____

MARIE A. PENN, Affiant

SUBSCRIBED AND SWORN to (or affirmed) before me this _____ day of _____, 20____, by MARIE A. PENN.

_____

Notary Public for _____

My commission expires: _____